BUYING OR ACQUIRING PROPERTY

- Definition of Residential Property
- Buyer's Stamp Duty (BSD)
- Additional Buyer's Stamp Duty (ABSD)
- Mortgage Duty

Additional Buyer's Stamp Duty (ABSD)

Share:

Liable buyers are required to pay ABSD on top of the existing Buyer's Stamp Duty (BSD). ABSD and BSD are computed on the purchase price as stated in the dutiable document or the market value of the property (whichever is the higher amount).

All buyers / transferees (i.e. individuals, entities including housing developers) are required to complete the ABSD Declaration Form (PDF, 277KB) to be witnessed by their lawyers (if applicable). The completed form need not be submitted to IRAS but it should be retained for at least 5 years from the date of purchase / acquisition of the property as IRAS may request for it for audit purposes.

Determining ABSD liability

The ABSD liability will depend on the profile of the buyer as at the date of purchase or acquisition of the residential property:
A. Whether the buyer is an individual or an entity
B. The profile of the buyer
C. The count of residential properties owned by the buyer (including residential property beneficially owned and held in trust) and
D. Whether the residential property is to be held in a living trust

Date of purchase or acquisition refers to the earliest of

Residential properties held on trust - ABSD (Trust)

Any conveyance, assignment or transfer on sale of residential property to a trustee to hold on trust and any instrument chargeable in like manner will be subject to the ABSD (Trust) rate of 65%.

For the purposes of stamp duty, the date of document of the purchase instrument will be taken as the date on which the document is **signed** (i.e. the Acceptance to Option to Purchase/Sale and Purchase Agreement should be signed on the date it is to be executed and delivered to the Vendor). The trust instrument should also be signed, sealed and delivered on the day it is to be executed.

Remission of ABSD (Trust) may be provided via a refund where the conveyance, assignment or transfer on sale of residential property to a person i.e. trustee, is held on trust for one or more identifiable individual beneficiaries only (whether or not the conveyance, transfer or assignment is also made to another person).

The amount remitted will be based on **the difference between the ABSD (Trust)** rate of 65% and ABSD rate corresponding to the profile of the beneficial owner with the highest applicable ABSD rate. ABSD (Trust) of 65% is to be paid upfront, and an application for the refund must be made to IRAS within six months after the date of execution of the instrument.

Please refer to the page on Remission of ABSD (Trust) for more details on the remission conditions.

Residential properties transferred into trusts for housing developers are subject to ABSD rate of 40% (5% non-remittable; plus 35% remitted upfront subject to conditions).

A. Whether the buyer is an individual or an entity

An entity means a person who is not an individual. It includes the following:

- An unincorporated association
- A trustee for a collective investment scheme when acting in that capacity
- A trustee-manager for a business trust when acting in that capacity
- The partners of the partnership whether or not any of them is an individual, where the property conveyed, transferred or assigned is to be held as partnership property

B. The profile of the buyer

The applicable ABSD rate is based on the profile of the buyer on the date of purchase. You must have been granted the Singapore Citizenship status or Singapore Permanent Resident status by the Immigration and Checkpoint Authority (ICA) as at the date of property purchase in order to enjoy lower ABSD liability.

For purchases made jointly by two or more buyers of different profiles, the highest applicable ABSD rate will apply on the entire value of the property purchased.

C. The count of residential properties owned by the buyer

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1. Count from date of contract or agreement
2. Full count for partial ownership and joint ownership
3. Property held on trust
4. Purchase of multiple properties in one transaction
5. Properties acquired to be included in the property count
6. HDB shop with living quarters and shophouse
7. Exclusion of properties gazetted for compulsory acquisition
8. Exclusion of properties located outside Singapore

Rates and computation

ABSD Rates on the higher of the purchase price or market value

Profile of buyer	ABSD rates from 16 Dec 2021 to 26 Apr 2023	ABSD rates on or after 27 Apr 2023
Singapore Citizens (SC) buying first residential property[1]	Not applicable	Not applicable
SC buying second residential property[1]	17%	20%
SC buying third and subsequent residential property[1]	25%	30%
Singapore Permanent Residents (SPR) buying first residential property[1]	5%	5%
SPR buying second residential property[1]	25%	30%
SPR buying third and subsequent residential property[1]	30%	35%
Foreigners (FR) buying any residential property[1]	30%	60%
Entities[2]buying any residential property[1]	35%	65%
Housing Developers[3] buying any residential property[1]	35%[4] (Plus additional 5% (non-remittable)[5])	35%[4] (Plus additional 5% (non-remittable)[5])

From 9 May 2022 onwards, any transfer of residential property into a living trust will be subject to an ABSD rate that is the same as entities.

Profile of buyer	ABSD rates from 9 May 2022 to 26 Apr 2023	ABSD rates on or after 27 Apr 2023
Trustee[6] buying any residential property[1]	35%	65%

ABSD is to be rounded down to the nearest dollar, subject to a minimum duty of $1.

[1] Whether owned wholly, partially or jointly with others.

[2] An Entity means a person who is not an individual. It includes the following:

- *An unincorporated association,*
- *A trustee for a collective investment scheme when acting in that capacity,*
- *A trustee-manager for a business trust when acting in that capacity*
- *The partners of the partnership whether or not any of them is an individual, where the property conveyed, transferred or assigned is to be held as partnership property.*

[3] Housing Developers refer to entities in the business of housing development (i.e. construction and sale of housing units) with respect to the subject property acquired. These include trustees for housing developers, which will continue to be subject to the same ABSD rate as Housing Developers.

[4] As entities, Housing Developers will also be subject to the ABSD rate for entities as follows:

- *For the period on or after 16 Dec 2021, Housing Developers will be subject to the ABSD rate of 35%.*

  Housing Developers may apply for remission of 35% ABSD, subject to conditions.

[5] This 5% ABSD for Housing Developers is in addition to the 35% (on or after 16 Dec 2021) ABSD. This 5% will not be remitted, and is to be paid upfront upon purchase of residential property.

[6] Trustee refers to a trustee of any trust when acting in that capacity, but excludes the following:

- *Trustee for a collective investment scheme when acting in that capacity;*
- *Trustee-manager for a business trust when acting in that capacity; and*
- *Trustee for a housing developer when acting in that capacity.*

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Example: A Foreigner purchases a unit at a market value of $2 million on 1 Aug 2023 and the ABSD rate of 60% applies.

ABSD rates prior to 16 Dec 2021

All entities will be subject to the new ABSD rate of 65%. Housing Developers are subject to the ABSD rate of 35% and an additional non-remittable ABSD rate of 5% upon stamping, i.e. aggregate ABSD rate of 40%. Such developers may apply for remission on the ABSD rate of 35% under the ABSD remission for development of 4 or less units of housing accommodation or ABSD remission for development of 5 or more units of housing accommodation.

Entities who are acquiring residential properties with no intention to carry out housing development (i.e. construction and sale of housing units) with respect to the subject property acquired should pay the ABSD rate of 65%.

It is **important** for the purchasing entity to decide whether it will undertake housing development of the subject property at the point of purchase, in order to ascertain the applicable ABSD treatment. Any subsequent change of intention will not be considered for stamp duty purposes. For example, entities who have paid the ABSD rate of 65% will not qualify for the ABSD Housing Developers Remission, even if they fulfil the remission conditions subsequently.

FAQs

ABSD treatment for trusts

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Why is there a remission of ABSD (Trust)?

With ABSD (Trust), will the residential property transferred into the trust be added to the property count of the beneficial owner?

How do I stamp documents liable to ABSD (Trust)?

For purchase by Singapore Citizens (SC)

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I am an SC currently owning only one private apartment. I am considering selling it and buying a terrace house. Do I have to pay ABSD when I buy the terrace house?

My wife and I are SCs and we jointly own an apartment. We intend to jointly purchase a terrace house that is under construction. Do we need to pay ABSD?

My wife and I are SCs and we jointly own one semi-detached house. I also inherited a 10% share of another property from a deceased relative. If I now buy a condominium unit together with my son who is an SC and does not own any property, do we have to pay ABSD on the purchase of the condominium unit?

I am an SC currently owning only a 20% share in a house co-owned with my mother. Should my mother transfer her 80% share of the house to me, do I need to pay ABSD? If I were to buy another private flat after that, what would be the ABSD rate?

I am an SC and I co-own a house with my mother. My husband who is also an SC does not own any residential property. If we buy our first matrimonial home jointly, do we need to pay ABSD?

I am an SC. I own 2 residential properties, 1 of which I own jointly with my mother, and the other with my husband. My husband now wishes to transfer his share of the jointly owned property to me. Do I need to pay ABSD on the transfer given that I already own half share in the property?

I am an SC. I own 3 residential properties, 2 in my sole name and the other jointly with my husband. My husband now wishes to transfer his share of the jointly owned property to me. Do I need to pay ABSD on the transfer given that I already own half share in the property?

I am a widow and I jointly own a terrace house with my son. We are both SC. We intend to downgrade to a condominium unit. Can we apply for ABSD refund if we dispose of the terrace house within 6 months after the purchase of the condominium unit?

For purchase by SC and others (Singapore Permanent Residents (SPR) and Foreigners (FR))

+ EXPAND ALL

I am an SC married to a SPR. We jointly own a private apartment. If we buy another house jointly, what is the ABSD payable by us?

I am an SC married to a SPR. We jointly own a 3-room HDB flat. If we upgrade to a 5-room flat, do we need to pay ABSD?

I am an SC married to a SPR. We jointly own a 5-room HDB flat. If we upgrade to a private flat, do we need to pay ABSD?

I am an SC married to an SPR. Both of us do not own any property in Singapore. If we jointly purchase our first matrimonial home, do we need to pay ABSD?

I am an SC and my wife is a FR. We jointly own one apartment which is our first matrimonial home and no other property. Would we be eligible for the ABSD remission if we upgrade to a terrace house and sell the apartment within 6 months of our purchase of the terrace house?

For purchase by non-SC

+ EXPAND ALL

I am an SPR who recently became a Singapore citizen. Do I need to pay ABSD?

I am an SPR buying my first HDB resale flat. Do I need to pay ABSD?

I am an SPR owning one private apartment. If I downgrade to a HDB resale flat, do I need to pay ABSD on the HDB flat?

I am an SPR owning one private apartment. If I purchase a second private apartment, what is the ABSD payable by me?

I am an SPR owning two private apartments. If I purchase a third or subsequent private apartment, what is the ABSD payable by me?

I am an SPR. I am also a citizen of United States of America. There is a Free Trade Agreement signed between USA and Singapore. Which ABSD rate will apply to me when I buy my first residential property in Singapore?

If I am in the process of obtaining my SC or SPR at the time of purchase, can I later apply for a remission to enjoy lower ABSD rates based on my new status?

I am an SPR. I own 1 residential property which I own jointly with my mother. My mother now wishes to transfer her share of the jointly owned property to me. What would be my property count and the ABSD payable on the transfer given that I already own half share in the property?

Property type

+ EXPAND ALL

I am buying a HDB shop with living quarters. Is ABSD payable?

I am buying a strata shop unit. Is ABSD payable?

I am buying a mixed-use development on land zoned 'Residential'. Is ABSD payable?

I am buying a semi-detached house which has been approved as a child care centre for three years. Is ABSD payable?

I am buying residential land with the intention of developing it for non-residential purpose. Is ABSD payable?

Property Count

+ EXPAND ALL

I am an SC owning one house in Malaysia but none in Singapore. Is ABSD payable when I buy my first residential property in Singapore?

I am an SC. My only house has been gazetted to be compulsorily acquired by the Government. If I buy another residential property now, do I need to pay ABSD?

Payment

+ EXPAND ALL

Who should pay ABSD?

When must BSD and ABSD be paid?

What if I do not have enough funds to pay ABSD? Can ABSD be deferred or paid by instalments?

Can I pay ABSD using my Central Provident Fund (CPF) money?

Others

+ EXPAND ALL

If a seller were to backdate the date of offer of his Option upon the request of the buyer to avoid paying ABSD at a higher rate, is this an offence?

If I enter into an arrangement in order to reduce or avoid the Additional Buyer's Stamp Duty that I have to pay, is this an offence?

I bought a condominium unit from a developer who has offered me 15% direct cash discount and this discount is also stated in the document to be stamped. Should I pay stamp duty on the purchase price before or after discount?

I did not have to pay ABSD on the purchase of my new flat because I managed to sell my previous property just before the purchase of my new flat. However, my buyer has now aborted the purchase of my previous property. Do I need to pay ABSD on my new flat now?

+ EXPAND ALL

My brother transferred a condominium unit to me by way of gift. I did not pay him any money. I am a Singapore citizen and this will be my second residential property. Do I need to pay ABSD?

I currently own an HDB flat and I inherited a terrace house from my uncle. Do I need to pay ABSD on the inherited property?

My wife and I (both SCs) jointly own an HDB flat and a condominium unit as joint tenants. We would like to change our manner of holding in our condominium unit to a 60-40 ratio. Are we liable to pay ABSD if we change our manner of holding?

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